

Clive F David vs State Of U.P. And Another on 4 April, 2023

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 64

Case :- APPLICATION U/S 482 No. - 9177 of 2023

Applicant :- Clive F David

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Archana Srivastava,Virendra Singh

Counsel for Opposite Party :- G.A.

Hon'ble J.J. Munir,J.

This application has been filed seeking quashing of order dated 19.1.2023 passed by learned Principal Judge, Family Court, District-Budaun in Criminal Miscellaneous Case No.596 of 2022, Smt. Deepali vs. Clive F David alias Ranu under Section 125 Cr.P.C.

The applicant, who is the husband, made an application in proceedings for maintenance brought by the second opposite party his wife, raising a plea that the marriage between parties was void and, therefore, no maintenance can be granted. It is this application which has been rejected by the impugned order.

The submission of learned Counsel for the applicant is that the case urged in the application is that the applicant-husband is a Christian and the opposite party married him holding herself out to be a Christian whereas infact she is a Hindu. It was made out in the application that the marriage between parties was performed according to Christian law and the parties had married according to Christian rites. The submission is that maintenance under Section 125 Cr.P.C. is payable only to the lawfully wedded wife, and in this case, for the reason above indicated, the second opposite party is not the applicant's lawfully wedded wife.

Sri Yogesh Mishra, learned Additional Government Advocate has opposed the motion to admit this application to hearing. He submits that the proceedings under Section 125 Cr.P.C. are summary proceedings to provide maintenance to the wife when the husband refuses to maintain her, so as to avoid destitution in society. It is submitted by the learned A.G.A. that the purpose of proceedings under Section 125 Cr.P.C. is not to judge the validity of marriage, and dependent on that, award or deny the prayer to award maintenance.

Upon hearing learned counsel for the parties, this Court finds that indeed the provisions of Section 125 Cr.P.C. are of universal application and are designed to prevent destitution in society. This provides for financial assistance to dependents such as a man's wife, his minor children or old and aged parents who cannot maintain themselves. The question whether the marriage is void or valid under the law applicable to Christians is not much of an issue to be decided in a summary proceeding under Section 125 Cr.P.C. Here, there is no doubt that the parties have married each other and lived together as man and wife. The applicant's obligation to maintain his wife arises out of accepting the matrimony. It matters little whether in the ultimate analysis and according to personal law applicable to parties, the marriage is valid or void. The salutary remedy under Section 125 Cr.P.C. cannot be subjected to postponement on a determination regarding the validity of marriage. In this connection, note may be taken of the decision of the Punjab and Haryana High Court in Robin vs. Jasbir Kaur, 2016 SCC OnLine P&H 4033. In that case a similar plea was raised regarding the marriage being void in order to avoid liability to pay maintenance under Section 125 Cr.P.C. In the aforesaid case, the husband was a Christian and the wife a Sikh. The Punjab & Haryana High Court in Robin (supra) held:

"17. To sum up, as per Section 11 of the Hindu Marriage Act, the marriages performed in contravention of Clauses (i), (iv) and of Section 5 of the Hindu Marriage Act are void, whereas under Section 12 of the said Act, for contravention of any of the conditions enumerated therein, the marriages are voidable.

18. It is necessary to notice that neither Section 11 nor Section 12 of the said Act renders a marriage between a Hindu and a Christian void or voidable on the ground that the parties belong to two different religions.

19. The rigour of voidness covered by Section 4 of the Indian Christian Marriage Act is stressed and attached more to the persons that officiate in the solemnisation of the marriages, and it does not envisage as regards the validity or otherwise of a marriage simpliciter that took place between a Hindu and a Christian. This view is again fortified by Section 4 of the Special Marriage Act, which permits a marriage between two persons of different faiths. Therefore, a Hindu can marry a Christian under the Special Marriage Act. Such a marriage cannot be held to be void on the ground that it was not performed according to the provisions of Section 6 of 8 5 of the Indian Christian Marriage Act. Similarly, Section 4 of the Foreign Marriage Act permits a marriage between parties, one of whom at least is an Indian citizen residing outside India. On a similar analogy as noted supra, even a marriage under this Act, if performed between a Hindu and a Christian both or one of whom is an Indian citizen,

cannot be held to be void on the ground that it is not performed in accordance with the provisions of Section 5 of the Indian Christian Marriage Act.

20. Accordingly, in view of the above discussion, it has to be held that the marriage between a Christian and a Hindu performed as per the Hindu rites with the full consent of both parties cannot be said to be invalid for purposes of claiming maintenance u/S. 125, Cr.P.C.

21. In *Kunhiraman Nair v. Annakutty*, 1967 Ker LT 24, it is noteworthy that the marriage was performed in accordance with the customs prevalent in Nair community between a Nair male and a woman following Roman Catholic faith. It was held that the very performance of the marriage and the fact that the parties thereto lived together as husband and wife were sufficient to confer on the woman the status of wife for claiming maintenance u/S. 488, Cr.P.C., 1898.

22. In *Pahtan Maung v. Ma San*, (1939) 40 Cri LJ 653 : AIR 1939 Rangoon 207, a Buddhist woman married a Mohammadan and claimed maintenance. It was held that although the marriage was not strictly in accordance with Mohammadan Law, she was entitled to relief u/S. 488, Cr.P.C., 1898.

23. In *Smyth v. Mrs. Hannah Smyth*, , a Roman Catholic married a woman professing Jewish faith. It was held that the marriage was not invalid so as to render an order of maintenance passed by a Criminal Court illegal.

24. In *Sethurathinam Pillai v. Barbara Dolly @ Sethurathinam*, (1970) 1 SCWR 589, the Madras High Court upheld the marriage between a Christian woman and a Hindu male as also the claim for maintenance on the ground that there 7 of 8 is nothing in Hindu Law forbidding a marriage between a Hindu and non-Hindu. On appeal, the order granting maintenance by the Madras High Court was confirmed by the Supreme Court observing :

"We do not think it necessary in this case to decide the case on the merits. The order passed in an application filed u/S. 488, Cr.P.C. is a summary order which does not finally determine the rights and obligations of the parties thereto. It is an order made in a proceeding under a provision enacted with a view to provide a summary remedy for providing maintenance, and for preventing vagrancy. The decision of the Criminal Court that there was a marriage between Barbara and Sethurathinam and that it was a valid marriage will not operate as decisive in any civil proceeding between the parties for determining those questions."

25. In view of the above, it cannot be held that the marriage between the husband and the wife, who are Hindu and Christian respectively, is not valid for purposes of granting the relief u/s 125 Cr.P.C. At the same time, it is open to the aggrieved party to seek appropriate remedy from the Civil Court for a declaration that the marriage is void or voidable, inasmuch as the finding of the Criminal Court

in these summary proceedings is neither conclusive nor decisive in the civil proceedings that may be initiated. The quantum of maintenance was not seriously challenged before me."

This Court is in agreement with the principles laid down by the Punjab & Haryana High Court in Robin which squarely apply to the facts here.

In the result, there is no infirmity in the order impugned. This application fails and is dismissed.

Order Date :- 4.4.2023 mh